

Court No. - 39

Case :- WRIT - C No. - 27067 of 2020

Petitioner :- Rizwan Ahmad

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondents no. 1 & 2 and Shri Chandan Agarwal, learned counsel appearing on behalf of respondents no. 3 to 5.

At the very outset, learned counsel for the petitioner prays that he does not want to press the relief with respect to quashing of the assessment order dated 13.07.2020 and hence to that extent the same may be treated as not pressed. Learned counsel appearing on behalf of the Power Corporation has no objection to the prayer so made. Accordingly, the prayer for quashing the assessment order dated 13.07.2020 is treated as not pressed.

The instant petition has been filed seeking following reliefs :

"(a) issue a writ, order or direction in the nature of writ of certiorari to quash the provisional assessment order dated 13.07.2020 as well as 12.10.2020 issued by respondent no. 04;

(b) issue a writ, order or direction in the nature of writ of mandamus directing the respondents not to take any coercive measure for recovery of electricity dues to the petitioner in pursuance of provisional assessment order dated 13.07.2020 & 12.10.2020 issued by respondent no. 04."

Learned counsel for the petitioner submits that he is ready and willing to deposit the total amount of Rs.7,62,307/- in easy installments. In this regard he has already moved a representation dated 10.11.2020 before respondent no. 4 which is pending consideration.

Shri Chandan Agarwal, learned counsel for respondents no. 3 to 5 submits that the petitioner's grievance for payment of dues in easy installments can be considered and decided under Clause 6.14 of the Electricity Supply Code, 2005, hence some reasonable time may be allowed by this Court.

Considering the aforesaid submissions, without going into the merits of the case, this writ petition is **disposed of** with a direction to the respondent no. 4 to consider and decide the

representation of the petitioner within a period of four weeks from the date a copy of this order is filed before him.

On deposit of first installment as may be fixed by respondent no. 4, electricity connection of the petitioner shall be restored, subject to the condition that further installments shall be paid by the petitioner within the prescribed period as may be fixed. In case of default in payment, the petitioner shall not be entitled to the benefit of this order.

Order Date :- 18.1.2021

VR/